

Contract & Building/Pest Inspection Red Flags — Queensland

What to check before you're legally committed — under Queensland's new disclosure regime.

Correct as at July 2026. General information only, not legal advice — always have a solicitor or conveyancer review your specific contract.

Section 1 — Understanding Queensland's New Seller Disclosure Regime (Essential Context)

- ☐ [] **Know this changed fundamentally on 1 August 2025.** Queensland moved from a historical "buyer beware" position to a **mandatory seller disclosure scheme** under the Property Law Act 2023 — one of the most significant Queensland property law changes in around 50 years.
- ☐ [] **Understand what the seller must give you.** Before you sign the contract, the seller must provide a **Seller Disclosure Statement (Form 2)** plus certain prescribed certificates, covering matters including title, zoning, encumbrances, and neighbourhood dispute (fencing/tree) orders.
- ☐ [] **Know your termination right if disclosure is missing or defective.** You can terminate the contract at any time before settlement if no disclosure statement was provided, or if it's inaccurate or incomplete in a material way — and you're entitled to a **full refund of your deposit plus any interest accrued**.
- ☐ [] **Understand "material matter" is deliberately broad**, with courts expected to take a buyer-friendly approach to interpreting it — the main carve-out is that council and water rates information specifically isn't captured by the "material matter" termination right.
- ☐ [] **Know this can't be contracted out of.** Any attempt by a seller to waive or exclude these disclosure obligations is void.

Section 2 — Building & Pest Inspection: Non-Negotiables

- ☐ [] **Book the inspection within your cooling-off window (private treaty) or before auction day.** There's no cooling-off period at auction.
- ☐ [] **Use a licensed, independent inspector**, not one exclusively recommended by the selling agent without your own due diligence.
- ☐ [] **Get both a building and pest inspection**, ideally combined — termite risk is genuinely significant across much of Queensland.
- ☐ [] **Ask specifically about:** cyclone/storm damage history and structural resilience, roof condition, rising damp, mould (a particular issue in Queensland's humidity), asbestos (common in pre-1990s homes), and general electrical/plumbing age.
- ☐ [] **Get the report in writing before your cooling-off period ends or before auction day.**

Section 3 — Contract Fundamentals

- ☐ [] **Check the property's zoning and any development restrictions** — this should be covered in the seller disclosure materials, but confirm you understand the implications with your solicitor.
- ☐ [] **If buying a body corporate (strata) property, review the body corporate records** — recent AGM minutes, financials, sinking fund balance, and any known disputes or special levies.
- ☐ [] **Check special conditions carefully** — these can vary standard buyer protections.
- ☐ [] **Confirm finance clause terms** if you're not fully pre-approved — a clear timeframe protects you if finance falls through.
- ☐ [] **Confirm the deposit amount, due date, and where it's held** (typically in a solicitor's or agent's trust account).
- ☐ [] **Confirm all expected inclusions are explicitly listed** in the contract, not just verbally promised.

Section 4 — Before You Sign or Bid: Final Checks

- ☐ [] **Have a solicitor or conveyancer review the full contract, Seller Disclosure Statement, and any special conditions** before you sign or bid.
- ☐ [] **Confirm your cooling-off rights apply** (5 business days, private treaty only, 0.25% penalty to withdraw) and understand these don't apply at auction.
- ☐ [] **Don't let time pressure rush your review of the disclosure statement** — given how new and significant this reform is, take the time to genuinely understand what's been disclosed rather than treating it as a formality to sign off quickly.

Quick Reference — Key QLD Contract Protections

PROTECTION	WHAT IT MEANS
Seller Disclosure Statement (Form 2)	Mandatory before you sign, since 1 August 2025
Missing/defective disclosure	You can terminate anytime before settlement, full deposit refund
Cooling-off period	5 business days, private treaty only — 0.25% penalty to withdraw
Auction	No cooling-off period for either party
Building/pest inspection	Not automatically provided — always arrange your own

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